

		thereafter, on 2/24/26. Plaintiff does not show that Defendants acted inconsistently with an intent to arbitrate, such as by engaging in extensive discovery, filing substantive motions, or posting jury fees. Accordingly, Plaintiff has not demonstrated that Defendants waived their right to compel arbitration. In sum, the court GRANTS Defendants’ motion to compel arbitration. The court also VACATES the 11/23/26 jury trial and STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4.) The court sets a Status Conference re Arbitration for November 16, 2026 at 9:00 am, in Dept. W8. Plaintiff’s counsel SHALL file and serve a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. Defendants to give notice.
18	Wong vs. Makhail	<u>Demurrer (re Third Amended Complaint) (x2)</u> <u>Motion to Strike</u> <u>Motion to Be Relieved as Counsel of Record (x2)</u> The operative pleading is the Third Amended Complaint (“TAC”), which contains a single cause of action for “invasion of privacy through publication of private facts and false light publicity”, asserted against all defendants. Plaintiffs’ opposing briefs (ROAs 427, 429) are unhelpful. The briefs fail to state whether they are responding to the demurrer/motion to strike brought by Defendant Makhail or Defendants Powerstone and Mourer, or both. More importantly, Plaintiffs appear to be responding to arguments not made in any of the moving papers (e.g., statute of limitations, standing, sham pleading) and claims not made in the TAC (e.g., fraud, IIED, NIED).

Plaintiffs' counsel should be prepared to discuss these defects in the opposing papers at the hearing.

1. Makhail

Demurrer

The court **OVERRULES** Defendants PAUL MAKHAIL's uncertainty demurrer to the Third Amended Complaint ("TAC") filed by Plaintiffs DOUGLAS WONG and JENNIFER JING. (Code Civ. Proc., § 430.10(f).)

Makhail argues that this court previously found that the Second Amended Complaint ("SAC") was "uncertain", and on this basis, Makhail now argues that the TAC "did not resolve the uncertainty." (Opp'n Br., 3:20-25.)

Not so. Makhail previously demurred *generally* to the SAC and the demurrer was *overruled*. (ROA 312.) Makhail did *not* previously demur to the SAC on the ground of uncertainty. (Id.) Piecemeal demurrers are not permitted. (See Code Civ. Proc., § 430.41(b).)

Further, this court did not find that the SAC was "uncertain". Again, Makhail's demurrer was overruled. It was overruled after Makhail argued, but failed to show, that the purported publication was public (versus private). The court stated, "The court cannot determine at this pleading stage that the information was public, and not private, or vice versa. Neither side cites authority sufficient to support their argument. And with the demurrer here, the court must read the SAC liberally and in the light most favorable to Plaintiffs." (2/10/26 Minute Order [ROA 369], p. 2.)

Nor did co-defendants demur to the SAC on the ground of uncertainty. (ROA 299.) While the court sustained the general demurrer of co-defendants to the SAC, the court did so on the ground that the SAC contains insufficient facts "to show wrongdoing by either Powerstone or Mourer." (ROA 369, p. 4.)

Makhail's demurrer is OVERRULED.